

JUSTIFICATION REVIEW DOCUMENT
FAR PART 16 EXCEPTION TO FAIR OPPORTUNITY JUSTIFICATION
For Actions Exceeding the Simplified Acquisition Threshold (SAT)

Program/Equipment: Eisenhower Army Medical Center Wireless Communications contract providing smartphone service, voice text messaging, push-to-talk paging, roaming when required, global calling and messaging when required. This contract provides wireless communication services for both DDEAMC and its outlying clinics.

Authority: 10 U.S.C. 3406(c)(2) as implemented by FAR Part 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Amount: \$472,773

Prepared by:

Date: 3 Jan 2025

Contracting Officer: O'cie D. Hendricks
Contracting Officer
Email: ocie.d.hendricks.civ@army.mil

Date: 3 Jan 2025

Technical:

Date: 3 Jan 2025

Requirements:

Date: 3 Jan 2025

Reviews: I have reviewed this justification and find it adequate to support an exception to fair opportunity.

Program Manager:

Date: See digital signature

[Redacted]

Control No: EISENHOWER 2025-28

[Redacted]

[Redacted]

Date: See digital signature

Legal Counsel:

[Redacted]

[Redacted]

Date: See digital signature

Director, MICC- Eisenhower:

[Redacted]

[Redacted]

Date: See digital signature

[Redacted]

**FAR Part 16 Exception to Fair Opportunity Justification
Under Multiple Award Indefinite Delivery Contracts
For Actions Exceeding the Simplified Acquisition Threshold (SAT)**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Eisenhower, 271 Heritage Park Lane, Bldg. 35200, Fort Eisenhower, GA. 30905.

2. Description of Action: Dwight D. Eisenhower Army Medical Center (DDEAMC) requests a firm-fixed-price task order with Cellco Partnership DBA Verizon Wireless, 1 Verizon Way, Basking Ridge, NJ 07920 USA. The contractor is Cellco Partnership DBA Verizon Wireless and will be referred to as Verizon Wireless throughout the remainder of the document. The Government projects award for February 2025 and fiscal year 2025, funds type Operations and Maintenance funds will be used.

An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: Dwight D. Eisenhower Army Medical Center (DDEAMC), is requesting services with Verizon Wireless to provide mobile device services. This consolidated mobile device contract was directed by DDEAMC leadership and supports the policy for wireless devices. This requirement covers the annual cost for devices and services within the Navy Spiral 4 as follows:

-AB01: Unlimited Voice & Text (w/Feature Phone "Voice Only" Device),
Quantity: 189 phone lines

-AB02: Unlimited Voice/Unlimited Text/Unlimited Data (w/Network approved Smartphone 1-GEN behind current market offering). Quantity: 189 smart phones

-AB03: AB03: Unlimited Data Only (w/MiFi (Hotspot) or Internet Device) 60 + 36
ipads Total= 96

-AD01 International Service + FD01-528: Global Email Feature FD02.503

-AD02: Other Services Non-Specified (e.g. M2M, MDM, MAAS, IOTs) total 4 routers

- AD03: 36 Apple iPad Pro 13 Inch M4 (7th Gen) 256GB, plus peripherals for iPads and cell phones

Performance Periods:

Base: 01 FEB 2025 to 31 JAN 2026

FAR Clause

52.217-8 option: 01 FEB 2026 to 01 JUL 2026

Total Value: \$472,773

4. Authority Cited: 10 U.S.C. 3406(c)(2) as implemented by FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

5. Reason for Authority Cited:

a. DDEAMC is currently receiving wireless service through a task order with Verizon under the Navy Spiral 4 Wireless Services multiple award contracts. Sustaining continuity of operations through a reliable service provider and select assigned devices is a priority for the Command. Continuous service is needed to maintain uninterrupted contact to both subordinate and higher headquarters commands for several key leaders throughout the staff. The loss or disruption of service while switching cellular carriers and currently assigned devices with specific configuration settings presents an unacceptable risk to current and future operations.

During market research on previous requirements conducted between October 2024 through December 2024, for this service, it was revealed that several of the vendors were resellers of cellular service and/or provided only pager service - which is inadequate for the needs of the operation.

Verizon Wireless currently provides DDEAMC with proprietary repeaters at no additional charge which enhances signal strength on each floor of the hospital and within all outlying buildings within the DDEAMC footprint. The repeater devices allow strong communication during emergent situations with healthcare providers and administrative personnel by bringing the cellular service signal from outdoors into our structures, negating attenuation of RF signal caused by our building materials. It would be very costly to replace repeaters, antennas, cables, with compatible equipment and would cause an interruption of service if we have to change carriers and would not be cost effective to replace them with compatible equipment if we must change carriers. Some of the costs incurred includes tearing down the structure to remove the devices and repairing the structures after replacing with another vendor's compatible devices. AT&T was contacted to determine estimated cost, and they were not capable of providing an accurate timely value without knowing the square footage or floor plans for their engineers to review. Verizon Wireless currently meets this requirement.

b. Alternatives: Hughes network provider is limited to the Continental United States, and Puerto Rico; thus, not meeting our global coverage requirements. MetTel provider is a reseller of cellular services in the United States. They do not appear to offer global cellular data coverage on the size/scale that the Command requires. Real Mobile is a reseller of cellular services in the United States. They offer application based global calling, but not a true international voice/text global roaming service. Additionally, Real Mobile does not offer tablets/iPad style devices. Wide Point specializes in Secure Identity & Access Management (IAM), Telecom Lifecycle Management (TLM), and IT as a Service (ITaaS). They do not to offer global roaming data services to the extent which DDEAMC require. Wide Point does not offer tablet/iPad platforms. T-Mobile does not offer global cellular voice/text/data in in specific geographical areas that DDEAMC operates to meet the needs of our globalized mission.

c. Impact if justification not approved: Failure to provide these supplies and services will diminish and jeopardize the health and well-being of the patients which would ultimately result in a mission failure.

6. Actions to Increase Competition: In accordance with FAR 5.202(a)(6), this action will not be synopsisized. A sources sought synopsis on a sole source basis was posted on SAM.gov January 03, 2025 and closed on January 08, 2025. The Government will ensure that the contractor obtains as much competition as possible if any part of the requirement is subcontracted and give maximum opportunity to small businesses.

7. Market Research: Market Research was conducted on each carrier by the Requiring Activity, Contract Support Cell. It was conducted between October 2024 through December 2024. The Department of Navy Spiral 4 Wireless MAC contracts have seven vendors: AT&T, Hughes Network Systems, MetTel, Real Mobile Inc., T-Mobile, Verizon Wireless, WidePoint Integrated Solutions Corp. Based on the needs of the organization, Hughes Network, MetTel, and T-Mobile do not offer global coverage. Real Mobile Inc., WidePoint Integrated Solutions Corp, and T-Mobile do not offer tablets/iPads- which is insufficient for the organization.

8. Other Facts: This requirement will be a Task Order issued via the Navy's Spiral 4 Wireless contract, the mandatory source for DoD wireless requirements.

Procurement History:

Contract: N0024418D0003/W91249-24-F-0059
Contractor: Verizon Wireless
Award Date: February 1, 2024
Competitive Status: Sole Source
Authority FAR 16.505(b)(2)(i)(C) Logical Follow-on

Contract: N0024418D0003/W91249-20-F-0041
Contractor: Verizon Wireless
Award Date: February 1, 2020
Competitive Status: Fair Opportunity given
Authority: Not Applicable

9. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: See digital signature

Program Manager

10. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: See digital signature

Contracting Officer Representative

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using price analysis. As a part of this basis, certified cost or pricing data will not be required and the following exception applies (FAR 15.403): A commercial item is being acquired.

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O'cie Hendricks
Contracting Officer

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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O'cie Hendricks
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of wireless service using an exception to fair opportunity pursuant to the authority of Title 10 United States Code Section 3406(c)(2) as implemented by Federal Acquisition Regulation Part 16.505(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. The estimated value of the contract is \$472,773 for a 1-year period of performance consisting of a base year to include FAR Clause 52.217-8, from 1 February 2025 through 31 July 2026. This approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

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O'cie Hend
Contracting Officer
U.S. Army Mission and Installation Contracting Command, MICC Fort Eisenhower, GA